

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ALICE GRINKLEY
GARETH BRYANT, and
YAKARA HAYNES,

Plaintiffs,

-against-

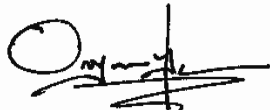
THE CITY OF NEW YORK; NYPD COMMANDING P.O.
DOMINGUEZ; NYPD P.O. KOSEK; NYPD P.O. HART;
NYPD P.O. MOHAMMAD HANAFI, SHIELD NO. 15802;
NYPD P.O. BOMPEROLLA, SHIELD NO. 1554; NYPD
P.O. REILLY, SHIELD NO. 16493; NYPD P.O.
CUSTAMANO, SHIELD NO. 4165; NYPD P.O.
MANETTA, SHIELD NO. 11047; NYPD P.O.
JOHN/JANE DOES # 1-10; all of the above
individual Defendants, including named are
sued in their individual and official
capacities,

Defendants.

----- X

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on Plaintiffs' attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
AUGUST 24, 2021



O. WILLIAMS IGBOKWE, ESQ.
LAW OFFICE OF WILLIAM IGBOKWE
Attorney for Plaintiffs
28 LIBERTY STREET, 6TH FLOOR
New York, New York 10005
347-467-4674

SUMMONS:**Index No:** _____**Date Filed:** _____**Basis of Venue:** Location of
incident: Kings County**Jury Trial Demanded**

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD COMMANDING P.O. DOMINGUEZ; NYPD
P.O. KOSEK; NYPD P.O. HART; NYPD P.O.
MOHAMMAD HANAFI, SHIELD NO. 15802;
NYPD P.O. BOMPEROLLA, SHIELD NO. 1554;
NYPD P.O. REILLY, SHIELD NO. 16493;
NYPD P.O. CUSTAMANO, SHIELD NO. 4165;
NYPD P.O. MANETTA, SHIELD NO. 11047
NYPD P.O. JOHN/JANE DOES # 1-10
79TH Precinct
263 Tompkins Avenue
Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ALICE GRINKLEY
GARETH BRYANT, and
YAKARA HAYNES,

Plaintiffs,

COMPLAINT

-against-

Index No: _____

THE CITY OF NEW YORK; NYPD COMMANDING
P.O. DOMINGUEZ; NYPD P.O. KOSEK; NYPD
P.O. HART; NYPD P.O. MOHAMMAD HANAFI,
SHIELD NO. 15802; NYPD P.O. BOMPEROLLA,
SHIELD NO. 1554; NYPD P.O. REILLY, SHIELD
NO. 16493; NYPD P.O. CUSTAMANO, SHIELD
NO. 4165; NYPD P.O. MANETTA, SHIELD NO.
11047; NYPD P.O. JOHN/JANE DOES # 1-10;
all of the above individual Defendants,
including named are sued in their
individual and official capacities,

Basis of Venue:

Location of incident:
Kings County

Jury Trial Demanded

Defendants.

----- X

The Plaintiffs, ALICE GRINKLEY, GARETH BRYANT, and YAKARA HAYNES
by and through counsel LAW OFFICE OF WILLIAM IGBOKWE, alleges upon
information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action
in which Plaintiffs seek relief for the violation of their rights
secured by the laws of the State of New York; New York State
Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth, Sixth,
and Fourteenth Amendments to the United States Constitution.
Plaintiffs' claims arise from an incident that arose on or about
January 05, 2020. During the incident, the City of New York, and

members of the New York City Police Department ("NYPD") subjected Plaintiffs to, among other things, unlawful search and seizure, false arrest and imprisonment, negligence, failure to intervene, negligent supervision, hiring, monitoring, training and retention of unfit employees, intentional and negligent infliction of emotional distress, conversion, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiffs seek compensatory and punitive damages from the individual Defendants, compensatory damages from the municipal Defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

3. Venue is proper in the Supreme Court of the State of New York, Kings County, because Plaintiffs reside in the State of New York, Kings County, and the acts in question occurred in the State of New York, Kings County.

4. Jurisdiction is proper because the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, Kings County, and because the amount in recovery exceeds the jurisdictional levels of all lower courts.

5. Plaintiffs seek compensatory and punitive damages from the individual Defendants, compensatory damages from the municipal Defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

PARTIES

6. Plaintiff Gareth Bryant is an African American Male, a resident of the State of New York, Kings County.

7. Plaintiff Alice Grinkley is an African American Female, a resident of the State of New York, Kings County.

8. Plaintiff Yakara Haynes is an African American Female, a resident of the State of New York, Kings County

9. At all times alleged herein, Defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated Plaintiffs' rights as described herein.

10. At all times alleged herein, NYPD COMMANDING P.O. DOMINGUEZ, NYPD P.O. KOSEK, NYPD P.O. HART, NYPD P.O. MOHAMMAD HANAFI, NYPD P.O. BOMPEROLLA, NYPD P.O. REILLY, NYPD P.O. CUSTAMANO, NYPD P.O. MANETTA, and P.O. JOHN/JANE DOES # 1-10 were New York City Police Officers employed with the 79th Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated Plaintiffs' rights as described herein.

11. The individual Defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

12. On January 5, 2020, at and in the vicinity of 260 Herkimer Street, Brooklyn, New York, several police officers operating from the 79TH Precinct, including upon information and belief, NYPD Commanding P.O. Dominguez, NYPD P.O. Kosek, NYPD P.O. Hart, NYPD P.O. Hanafi, NYPD P.O. Bomperolla, NYPD P.O. Reilly, NYPD P.O. Custamano, NYPD P.O. Manetta, and NYPD P.O. John or Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against Plaintiffs.

13. On January 5, 2020, at approximately 12:00 a.m., 260 Herkimer Street, Brooklyn, New York, Defendants on the orders of NYPD Commanding P.O. Dominguez, went to the above location which is the Plaintiffs' home and threatened the Plaintiff Grinkley with excessive use of force or violence if Plaintiffs did not allow the Defendants into the home.

14. Defendants did not have consent or a lawful search warrant to enter Plaintiffs' home, and did not present one when they attempted to enter Plaintiffs' home.

15. The Defendants without consent or a lawful search warrant entered the Plaintiffs' home and ransacked the home searching throughout the home, and destroyed property.

16. The individual Defendants acted in concert committing the above-described illegal acts toward Plaintiffs.

17. Plaintiffs did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

18. The Defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said Defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiffs of their rights.

19. As a direct and proximate result of Defendants' actions, Plaintiffs experienced personal injuries, pain and suffering, fear, an invasion of privacy, conversion of property, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

20. Plaintiffs are entitled to receive punitive damages from the individual Defendants because the individual Defendants' actions were motivated by extreme recklessness and indifference to Plaintiffs' rights.

FIRST CLAIM**(FALSE ARREST UNDER FEDERAL LAW)**

21. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

22. Defendants falsely arrested Plaintiffs without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that Plaintiffs had committed a crime.

23. Accordingly, Defendants are liable to Plaintiffs for false arrest under 42 U.S.C. § 1983 and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

24. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

25. Defendants unlawfully stopped and searched Plaintiffs without cause, a warrant, or consent.

26. Defendants unlawfully entered Plaintiffs' apartment and conducted an unlawful search without a cause, a warrant or consent.

27. Accordingly, Defendants are liable to Plaintiffs for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

THIRD CLAIM**(FAILURE TO INTERVENE)**

28. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

29. Defendants had a reasonable opportunity to prevent the violations of Plaintiffs' constitutional rights, but they failed to intervene.

30. Accordingly, the Defendants are liable to Plaintiffs for failing to intervene to prevent the violation of Plaintiffs' constitutional rights.

FOURTH CLAIM**(UNREASONABLE FORCE)**

31. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

32. The individual defendants' use of force upon Plaintiffs was objectively unreasonable.

33. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against Plaintiffs, since Plaintiffs were unarmed, compliant, and did not resist arrest.

34. Those defendants who did not touch Plaintiffs, witnessed these acts, but failed to intervene and protect Plaintiffs from this conduct.

35. Accordingly, the defendants are liable to Plaintiffs for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution.

FIFTH CLAIM

**(NEGLIGENT SUPERVISION, HIRING, MONITORING,
TRAINING, AND RETENTION OF UNFIT EMPLOYEES)**

36. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

37. Defendant City of New York is liable to Plaintiffs because the occurrence and injuries sustained by Plaintiffs were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of Defendant City of New York, and the NYPD, its agents, servants and/or employees, as set forth above, without provocation on the part of Plaintiffs contributing thereto, specifically, the negligent and reckless manner in which said Defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained its Police Officers.

SIXTH CLAIM

(MONELL CLAIM)

38. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

39. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by Plaintiffs.

40. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against Plaintiffs: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; and (4) fabricating evidence against innocent persons.

41. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

42. Nevertheless, Defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual Defendants and improperly retained and utilized them. Moreover, upon information and belief, Defendant City of New York failed to adequately investigate prior complaints filed against the individual Defendants.

43. Further, Defendant City of New York was aware prior to the incident that the individual Defendants (in continuation of

its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

44. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual Defendants, placing the Defendant City of New York on notice of the individual Defendants' propensity to violate the rights of individuals.

45. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state courts and served time in federal prison. In 2011, Brooklyn South Narcotics Officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to

obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

46. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiffs as alleged herein.

47. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.

48. The City's failure to act resulted in the violation of Plaintiffs' constitutional rights as described herein.

SEVENTH CLAIM

(RESPONDEAT SUPERIOR)

49. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

50. The individual Defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against Plaintiffs.

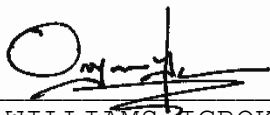
51. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, Plaintiffs demand a jury trial and the following relief jointly and severally against the Defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
August 24, 2021

LAW OFFICE OF WILLIAM IGBOKWE,
Attorney for Plaintiffs
28 Liberty Street, 6th Floor
New York, New York 10005
(347) 467 - 4674
will@iwlaws.com
By:



O. WILLIAMS IGBOKWE, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALICE GRINKLEY
GARETH BRYANT, and
YAKARA HAYNES,

VERIFICATION

Index No: _____

Plaintiffs,

Date Filed: _____

-against-

THE CITY OF NEW YORK; NYPD COMMANDING P.O.
DOMINGUEZ; NYPD P.O. KOSEK; NYPD P.O. HART; NYPD
P.O. MOHAMMAD HANAFI, SHIELD NO. 15802; NYPD P.O.
BOMPEROLLA, SHIELD NO. 1554; NYPD P.O. REILLY,
SHIELD NO. 16493; NYPD P.O. CUSTAMANO, SHIELD NO.
4165; NYPD P.O. MANETTA, SHIELD NO. 11047; NYPD
P.O. JOHN/JANE DOES # 1-10; all of the above
individual Defendants, including named are sued in
their individual and official capacities,

Defendants.

STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

O. Williams Igbokwe, Esq, an attorney-at-law, duly admitted to practice
law in the State of New York, hereby affirms pursuant to the C.P.L.R. and
subscribing as true under the penalties of perjury as follows:

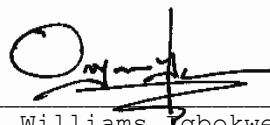
That the Affirmant is a member of Igbokwe PLLC, the attorney of record
for the Plaintiffs in the above entitled action.

That the Affirmant has read the foregoing complaint and knows the
contents thereof; that the same is true to his knowledge, except as to the
matters stated to be alleged upon information and belief, and that as to
those matters he believes them to be true.

That the reason why this verification is made by Affirmant instead of
the Plaintiffs is because the Plaintiffs does not reside within the County in
which the firm of Igbokwe PLLC maintain their office.

The grounds of Affirmant's belief as to all matters in the complaint
not stated to be upon his knowledge are based upon conversations with
Plaintiffs, and a review of records related to this action.

DATED: New York, New York
August 24, 2021



O. Williams Igbokwe, ESQ